

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO



ORIGINAL

Civil Action No. 16-cv-00447-PAB-KLM

EDWARD JOHN NOSEWICZ,

Plaintiff,

v.

JEFFREY JANOSKO,

Defendant.

VERDICT FORM

We, the jury, present our answers to questions submitted by the Court, to which we have all agreed:

1. Did plaintiff physically resist an attempt by the defendant to remove plaintiff from his cell?

Yes: ✓ No: _____

If you answered "No" to Question No. 1, please DO NOT answer Question No. 2.

2. Was the amount of force used by defendant in response to plaintiff's physical resistance more than the amount of force reasonably necessary?

Yes: _____ No: ✓

3. Has plaintiff proved, by a preponderance of the evidence, his unreasonable force claim against defendant?

Yes: _____ No: ✓

If you answered "No" to Question No. 3, please DO NOT answer the

following questions. Instead, sign and date the last page of this form. If you answered "Yes" to Question No. 3, please answer Question Nos. 4-5 to the extent applicable. If any question is not applicable, leave your answer blank.

4. If you answered "Yes" to Question No. 3, do you find by a preponderance of the evidence that plaintiff has compensatory damages proximately caused by defendant's violation of plaintiff's constitutional rights?

Yes: _____ No: _____

If your answer is "Yes," in what amount?

Medical expenses: \$ _____

Non-economic damages: \$ _____

If your answer to Question No. 4 is "No," please enter the amount of nominal damages, not to exceed one dollar, awarded to plaintiff and against defendant:

\$ _____

5. Has plaintiff proved, by a preponderance of the evidence, that defendant acted with evil motive or intent, or with reckless or callous indifference to plaintiff's federally protected rights?

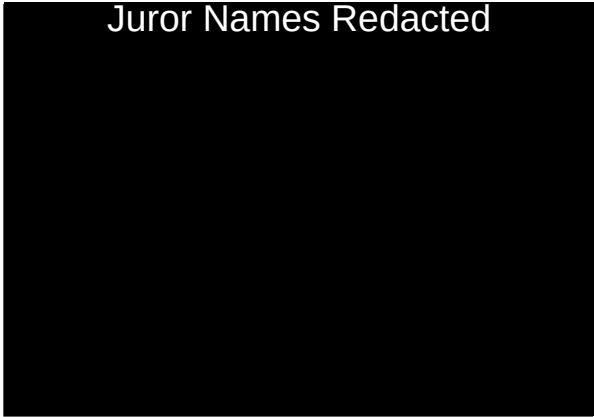
Yes: _____ No: _____

If your answer is "Yes," please enter the amount of punitive damages, if any, awarded to plaintiff and against defendant:

\$ _____

DATED October 9, 2019

Juror Names Redacted



Juror Names Redacted

